

Niral W/O Ankit Shah And D/O ... vs Ankit Rajendrabhai Shah on 25 March, 2021

Author: R.M.Chhaya

Bench: R.M.Chhaya, R.P.Dholaria

C/FA/1256/2021

ORDER

IN THE HIGH COURT OF GUJARAT AT AHMEDABAD

R/FIRST APPEAL NO. 1256 of 2021

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NIRAL W/O ANKIT SHAH AND D/O JITENDRABHAI JAYANTIBHAI
GARIWALA
Versus
ANKIT RAJENDRABHAI SHAH

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Appearance:

MR TEJAS P SATTA(3149) for the Appellant(s) No. 1

MR KEVAL H MAHARAJA(9062) for the Defendant(s) No. 1

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CORAM: HONOURABLE MR. JUSTICE R.M.CHHAYA
and
HONOURABLE MR. JUSTICE R.P.DHOLARIA

Date : 25/03/2021
ORAL ORDER

(PER : HONOURABLE MR. JUSTICE R.M.CHHAYA)

1. ADMIT. With consent of the learned advocates appearing for the parties, the appeal is taken up for its final disposal forthwith. Paper book is also dispensed with.

2. This appeal under Section 19 of the Family Courts Act arises out of the judgment and decree dated 30.7.2019 passed by the Family Court no.4, Ahmedabad in Hindu Marriage Petition (HMP) no.1725 of 2018, whereby the application filed by the appellant for divorce under Section 13(1) of the Hindu Marriage Act, 1955 came to be dismissed.

3. Record further indicates that the present appeal was filed after the period of limitation and the proceedings of this appeal were pending. The record further indicates that during pendency of this appeal, the parties have settled the issue. The respondent-husband has also filed an affidavit dated 3.3.2021 before this Court.

4. Heard Mr. Tejas P. Satta, learned advocate for the appellant and Mr. K.H. Maharaja, learned advocate for the respondent.

5. Mr. Maharaja, learned advocate for the respondent has invited attention of this Court to the affidavit dated 3.3.2021 and has contended that the parties have resolved the issue by mutual consent and both the parties have now agreed for mutual divorce. The said fact is evident from Paragraph 9 of the affidavit filed by the respondent herein.

6. In light of the aforesaid, Mr. Tejas P. Satta, learned advocate for the appellant seeks permission to withdraw Hindu Marriage Petition no.1725 of 2018 and both the learned advocates seek liberty to file an appropriate application for divorce by mutual consent as provided under Section 13(B) of the Hindu Marriage Act.

7. In peculiar facts and circumstances as narrated hereinabove, the appellant - original petitioner is permitted to withdraw Hindu Marriage Petition no.1725 of 2018. As the Hindu Marriage Petition is withdrawn, the impugned judgment also would not survive. The parties are at liberty to approach the Family Court, Ahmedabad with an application for divorce by mutual consent as per the agreement entered into between the parties dated 22.10.2020 which is also forming part of the record of the appeal along with the affidavit filed by the respondent. If any such application is filed, the Family Court is directed to decide the same as expeditiously as possible. It would also be open for both the parties to request the Court for expeditious hearing as even after the agreement, almost a period of six months have already elapsed.

8. Accordingly, the appeal is disposed of.

(R.M.CHHAYA, J) (R.P.DHOLARIA, J) MRP